ORDINANCE 17-005Z

ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING THE EXISTING ZONING ORDINANCE AND ZONING MAP

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Zoning Ordinance and Zoning Map with regards to the Zoning of Lots 338, 339 & 365 on Assessor's Plat 6(the "premises"),said property bordering Douglas Avenue; and

WHEREAS, an application has been filed by Douglas Avenue Associates, Inc. and U.S. Development II, LLC requesting the amendment the North Providence Zoning Ordinance and Zoning Map.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the existing Zoning Ordinance and Zoning map of the Town of North Providence be amended so that the Zoning of Lots 338,339 and 365 on Assessor's Plat 6, said premises bordering Douglas Avenue, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from Commercial General (CG) and Commercial Village (CV) to Manufactured Limited (ML).

SECTION TWO: That a Special Use Permit is hereby granted allowing for "self-storage use" on Lots 338, 339 & 365 on Assessor's Plat 6.

SECTION THREE: That, in connection with the "self-storage use" of Lots 338, 339 & 365 on Assessor's Plat 6, a setback variance for a reduction in the rear setback from thirty (30') feet to five (5') feet is hereby granted.

SECTION FOUR: That the amendment set forth in Section One herein shall be subject to the following restrictions:

A. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

B. That the amendment is approved based upon the recommendation (and conditions contained therein) of the North Providence Planning Board dated April 12, 2017, which are incorporated herein by reference;

C. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

D. That there will be zero runoff from the premises to the abutting properties;

E. There shall be appropriate fencing and landscaping so that the premises is conducive to the abutting neighborhood. Said landscaping and fencing to be approved by the Town of North Providence Building and Planning Offices.

SECTION FIVE: That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

SECTION SIX: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION SEVEN: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: May 18, 2017

COUNCIL PRESIDENT

APPROVED: May 19, 2017

MAYOR

TOWN CLERK

TOWN OF NORTH PROVIDENCE TOWN COUNCIL

In Re: Application of Douglas Avenue Associates, Inc. and U.S. Development II, LLC

DECISION

The above matter came before the North Providence Town Council, on May 2, 2017, with regard to an application filed by the above-referenced party to amend the North Providence Zoning Map and Zoning Ordinance. The representative of the applicants was present and was represented by legal counsel and after a public hearing before the North Providence Town Council, the Town Council, upon a roll call vote of seven (7) ayes and zero (0) nayes, makes the following decision:

1. That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lots 338,339 and 365 on Assessor's Plat 6, said premises bordering Douglas Avenue, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from Commercial General (CG) and Commercial Village (CV) to Manufactured Limited (ML), subject to the restrictions set forth in Section 2 herein.

2. That the amendment set forth in Section 1 herein shall be subject to the following restrictions:

A. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

B. That the amendment is approved based upon the recommendation (and conditions contained therein) of the North Providence Planning Board dated April 12, 2017, which are incorporated herein by reference;

C. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

D. That there will be zero runoff from the premises to the abutting properties;

E. There shall be appropriate fencing and landscaping so that the premises is conducive to the abutting neighborhood. Said landscaping and fencing to be approved by the Town of North Providence Building and Planning Offices.

3. That a Special Use Permit is hereby granted allowing for "mini-storage facility" on Lots 338, 339 & 365 on Assessor's Plat 6

4. That, in connection with the "mini-storage facility" of Lots 338, 339 & 365 on Assessor's Plat 6,a setback variance for a reduction in the rear setback from thirty (30') feet to five (5') feet is hereby granted.

5. That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

6. That any approval by the Town of North Providence Town Council is subject to the further approval by the State of Rhode island, Statewide Planning Department.

Entered as a Decision of the North Providence Town Council, the local authority, on this 2nd day of May, 2017.

ADOPTED: 5/2/17

COUNCIL PRESIDENT

TOWN CLERK